

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502034	BUSTAMANTE vs PHOENIX ASSURANCE LLC	MOTION TO BE RELIEVED AS COUNSEL FOR PHOENIX ASSURANCE, LLC

Tentative Ruling:

After reviewing the declaration of counsel, Hardy Murphy (CRC 3.1362(d)), the court finds that counsel has shown sufficient reasons why the motion to be relieved as counsel should be granted (Manfredi & Levine vs. Superior Court (Barles) (1998) 66 Cal. App. 4th 1128, 1134).

Notice to client was made (Section 3(a) and (b) MC-052; CRC 3.1362(d)). Accordingly, the Motion to be Relieved as Counsel of Record is Granted.

Counsel is relieved as counsel of record for client effective upon the filing of the proof of service of the signed order upon the client and all parties that have appeared in the action. Order submitted to the court has been signed and filed by the court clerk.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2502492	WHITSON vs MADRID- ANZACK	MOTION FOR RELIEF FROM DISMISSAL

Tentative Ruling:

A motion to set aside a dismissal is generally governed by California Code of Civil Procedure §473(b). A motion to set aside a dismissal under CCP §473(b) must be based on either: declarations or other evidence showing “mistake, inadvertence, surprise, or excusable neglect” (in which event, relief is discretionary), or an attorney affidavit of fault (in which event, relief is mandatory).

Under CCP §473(b), the court is required to vacate any default or dismissal “whenever an application for relief is made no more than six months after entry of judgment (or dismissal), is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.”

CCP §473(b) grants the trial court discretion to vacate a dismissal on the basis of “mistake, inadvertence, surprise, or excusable neglect.” The moving party bears the burden of demonstrating by a preponderance of the evidence that at least one of these conditions is met. *Hopkins & Carley v. Gens* (2011) 200 CA4th 1401, 1410, 135 CR3d 1, 8–9; *Luz v. Lopes* (1960) 55 C2d 54, 62, 10 CR 161, 165–166.

Mistake

Mistake may be one of fact or law. Mistake of fact occurs when a person understands the facts to be other than they are; a mistake of law occurs when a person